



RISE & SHINE ABA LLC

Empowering children to reach their full potential

NON-DISCLOSURE AGREEMENT

Document v2.0 · Effective May 2026

1. Parties

This Non-Disclosure Agreement ("Agreement") is entered into between **Rise & Shine ABA LLC**, a New York limited liability company ("Company"), and the undersigned employee or contractor ("Recipient"). It governs the protection of Confidential Information shared with Recipient in the course of employment, contracting, or any business relationship with the Company.

2. Definition of Confidential Information

"Confidential Information" includes, but is not limited to:

- Client identity, contact information, diagnoses, treatment plans, behavioral data, session notes, progress notes, and any other client-related information (which is also Protected Health Information governed by the HIPAA & Confidentiality Agreement and HIPAA itself)
- Insurance, billing, authorization, claim, and reimbursement information
- Business practices, operational procedures, financial data, pricing, and strategic plans
- Training materials, manuals, internal forms, templates, and intellectual property developed by Rise & Shine ABA
- Employee records, compensation, performance data, and personnel matters
- Vendor lists, partner relationships, and referral sources
- Any other non-public information disclosed in the course of employment, contracting, or business relationship

Confidential Information is protected regardless of form — written, verbal, electronic, audio, video, or any other medium.

3. Recipient's Obligations

Recipient agrees to:

- Maintain strict confidentiality of all Confidential Information.
- Use Confidential Information solely for the purpose of performing services for Rise & Shine ABA.

- Not disclose Confidential Information to any third party — including family members, friends, future employers, competitors, or the general public — without the Company's prior written authorization.
- Store and transmit Confidential Information securely, in compliance with HIPAA, the HIPAA & Confidentiality Agreement, and Company policies.
- Immediately report any suspected breach, loss, or unauthorized disclosure to the Compliance Officer or Director of Operations.
- Return or destroy all Confidential Information upon separation from the Company, and certify such return or destruction in writing.

4. Exclusions

This Agreement does not apply to information that:

- Was lawfully in Recipient's possession before disclosure by the Company, with documentation
- Becomes publicly available through no fault, action, or inaction of Recipient
- Is independently developed by Recipient outside the scope of employment without reference to Confidential Information
- Is required to be disclosed by law, court order, or government agency — provided Recipient gives the Company prompt written notice and an opportunity to object, where legally permissible

5. Whistleblower & Trade Secret Notice (Defend Trade Secrets Act)

Federal Whistleblower Immunity (18 U.S.C. § 1833(b))

Notwithstanding any other provision of this Agreement, you are notified that you may not be held criminally or civilly liable under any federal or state trade-secret law for the disclosure of a trade secret if such disclosure is made: *(a) in confidence to a federal, state, or local government official, either directly or indirectly, or to an attorney, solely for the purpose of reporting or investigating a suspected violation of law; or (b) in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal.* Further, you may disclose trade secrets to your attorney and use trade-secret information in court proceedings, provided you file any document containing the trade secret under seal and do not disclose the trade secret except pursuant to court order.

This notice is required by the federal Defend Trade Secrets Act of 2016 and applies to all employees and contractors. Nothing in this Agreement prevents you from reporting suspected violations of law to government agencies, cooperating with government investigations, or exercising any other legally protected whistleblower right.

6. No Restriction on Lawful Conduct

Nothing in this Agreement is intended to restrict your right to: discuss your own wages or working conditions with coworkers (a right protected by the National Labor Relations Act); file a charge or participate in an investigation by the EEOC, NLRB, OSHA, or state agency; testify truthfully in any proceeding; or engage in any other legally protected activity.

7. Term & Survival

- This Agreement remains in effect for the duration of Recipient's employment, contract, or business relationship with the Company.
- **Confidentiality obligations survive termination** indefinitely as to Confidential Information that constitutes PHI or trade secrets, and for **three (3) years post-termination** as to other Confidential Information.
- HIPAA-protected information remains protected by federal law indefinitely, regardless of this Agreement.

8. Enforcement

- Breach of this Agreement may result in disciplinary action, including immediate termination, and civil legal action by the Company.
- Recipient acknowledges that monetary damages may be insufficient to remedy a breach, and the Company may seek injunctive relief in addition to damages.
- If the Company prevails in legal action to enforce this Agreement, Recipient may be liable for the Company's reasonable attorneys' fees and costs.

9. Governing Law

This Agreement is governed by the laws of the State of New York, without regard to conflict-of-law principles. Any legal action arising under this Agreement shall be brought in the state or federal courts located in New York.

10. Acknowledgment & Signature

By signing below, I confirm that I have read, understood, and agree to comply with this Non-Disclosure Agreement, including the federal whistleblower notice in Section 5.

Recipient Full Name (Print)

Date

Position / Title

Signature

On Behalf of the Company

Authorized Signatory (Name & Title)

Date
